Harris County District Court

Cause No. 2025-CV-0014

Amber Jones, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	September 22, 2025
Plaintiff's counsel:	Debra Moody, Brown & Shaw Law Group

PARTIES

Plaintiff Amber Jones is an individual residing in Texas who was the driver of a passenger vehicle involved in the collision described below. Defendant is an automobile insurance company authorized to transact business in the State of Texas, which issued the policy of insurance under which Plaintiff makes claim for uninsured or underinsured motorist benefits and for related contractual and statutory obligations.

FACTS

On June 17, 2024, Plaintiff was lawfully operating his vehicle in Pearland and was turning left at an intersection when his vehicle was struck by another motor vehicle. The collision occurred while Plaintiff was completing a lawful left turn in accordance with the traffic signals and the rules of the road. The at-fault driver failed to yield and did not stop before entering the intersection. Plaintiff timely reported the collision to Defendant and submitted all information and documentation that Defendant requested. Defendant has not paid the benefits owed under the policy, and it has not offered a fair settlement of Plaintiff's claim.

NEGLIGENCE

The at-fault driver owed Plaintiff a duty to operate his vehicle with reasonable care, to obey traffic control devices, and to yield the right-of-way when required by law. That driver breached those duties by failing to yield and by entering the intersection unsafely, and that breach directly caused the collision. Defendant owes Plaintiff a contractual duty to investigate and pay covered claims in good faith and to deal fairly with him, and Defendant breached those duties by delaying payment without a reasonable basis.

DAMAGES

As a direct result of the collision, Plaintiff suffered a neck strain, with resulting pain, stiffness, limited range of motion, and headaches. Plaintiff has incurred medical expenses for examination and treatment, has lost time from work, and continues to experience discomfort and reduced ability to perform daily activities. Plaintiff seeks recovery of the policy benefits owed, damages for past and future physical pain and mental anguish, medical expenses, lost earnings, statutory interest, and attorney's fees as permitted by Texas law. Plaintiff seeks monetary relief in the amount of $31,000.00.